

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Georgia Rochon	Team: Squad #2	CCRB Case #: 201810135	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/05/2018 1:47 PM	Location of Incident: § 87(2)(b), 120th Precinct stationhouse.	Precinct: 120	18 Mo. SOL 6/5/2020	EO SOL 1/20/2021	
Date/Time CV Reported Wed, 12/05/2018 7:59 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 12/05/2018 7:59 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Chan	00685	943074	120 PCT
2. DT3 Matthew Commender	263	944451	120 DET
3. LT Daniel Fitzpatrick	00000	943242	120 PCT
4. SGT Thomas Gugliucci	4940	940225	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Anthony Alfano	00705	898892	120 DET
2. LCD Christophe Bannon	00000	921137	120 DET
3. DT3 Daniel Castillo	00212	945566	120 DET
4. DT3 Paul Melendez	06997	935304	120 DET
5. POM Raymond Rodriguez	28037	946181	120 PCT
6. POM Joseph Bruno	16433	957407	120 PCT
7. DI Isa Abbassi	00000	918669	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Robert Chan	Abuse: At § 87(2)(b) on Staten Island, Sergeant Robert Chan questioned § 87(2)(b)	
B.LT Daniel Fitzpatrick	Abuse: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick arrested § 87(2)(b)	
C.LT Daniel Fitzpatrick	Abuse: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick arrested § 87(2)(b)	
D.LT Daniel Fitzpatrick	Abuse: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick frisked § 87(2)(b)	
E.LT Daniel Fitzpatrick	Abuse: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick searched § 87(2)(b)	
F.LT Daniel Fitzpatrick	Abuse: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick frisked § 87(2)(b)	
G.LT Daniel Fitzpatrick	Abuse: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick searched § 87(2)(b)	
H.SGT Robert Chan	Abuse: Sergeant Robert Chan entered § 87(2)(b) on Staten Island.	
I.SGT Thomas Gugliucci	Abuse: Sergeant Thomas Gugliucci entered § 87(2)(b) on Staten Island.	

Officer(s)	Allegation	Investigator Recommendation
J.SGT Robert Chan	Abuse: Sergeant Robert Chan searched § 87(2)(b) on Staten Island.	
K.SGT Thomas Gugliucci	Abuse: Sergeant Thomas Gugliucci searched § 87(2)(b) on Staten Island.	
L.DT3 Matthew Commender	Abuse: At the 120th Precinct stationhouse, Detective Matthew Commender threatened to arrest § 87(2)(b)	
M.DT3 Matthew Commender	Abuse: At the 120th Precinct stationhouse, Detective Matthew Commender searched § 87(2)(b)'s recording device.	
N.DT3 Matthew Commender	Abuse: At the 120th Precinct Stationhouse, Detective Matthew Commender searched § 87(2)(b)'s recording device.	

Case Summary

On December 5, 2018, § 87(2)(b) filed this complaint via the CCRB website. The same day, § 87(2)(b) filed a complaint regarding the same incident via the CCRB website.

On December 5, 2018, officers responded to a Shot-Spotter activation in the vicinity of § 87(2)(b) on Staten Island (Shot-Spotter is an automated technology which detects potential gunfire and alerts the police). Once on scene, officers recovered shell casings in the driveway of § 87(2)(b). Soon after, § 87(2)(b) exited § 87(2)(b), and Sergeant Robert Chan of the 120th Precinct asked him for his ID, and his name (**Allegation A—Abuse of Authority—Question**—§ 87(2)(g) § 87(2)(b) then met up with § 87(2)(b) and they went to a nearby convenience store.

Upon returning, § 87(2)(b) and § 87(2)(b) were handcuffed and searched under the direction of Lieutenant Daniel Fitzpatrick of the 120th Precinct (**Allegations B and C—Abuse of Authority—Arrest**—§ 87(2)(g) and **Allegations D, E, F and G—Abuse of Authority—Frisk/Search**—§ 87(2)(g) After § 87(2)(b) and § 87(2)(b) were handcuffed, officers entered and searched § 87(2)(b) at the direction of Sergeant Chan and Sergeant Thomas Gugliucci of the 120th Precinct (**Allegation H and I—Abuse of Authority—Entry of premises**—§ 87(2)(g) and **Allegation J and K—Abuse of Authority—Search of premises**—§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) were taken to the 120th Precinct stationhouse, where they were interviewed by Detective Matthew Commender of the 120th Precinct Detective Squad. Detective Commender asked § 87(2)(b) to see his text messages (**Allegation L—Abuse of Authority—Search of recording device**—§ 87(2)(g) and allegedly threatened to arrest him if he did not show them to him (**Allegation M—Abuse of Authority—Threat of arrest**—§ 87(2)(g) He also allegedly searched § 87(2)(b)'s cell phone (**Allegation N—Abuse of Authority—Search of recording device**—§ 87(2)(g) Soon after, § 87(2)(b)'s step-father, § 87(2)(b), was arrested in regard to the incident and charged with § 87(2)(b) (Board Review 68).

§ 87(2)(b)

Footage from the § 87(2)(b) Auto-Vault's Ring camera was obtained in the course of the investigation. It is located in IAs #150-167 (Board Reviews 05-22), and summarized in IA #175 (Board Review 23). Body-worn camera (BWC) footage was also obtained in the course of the investigation. It is located in IAs #52-76 (Board Reviews 24-46) and is summarized in IAs #147 and #148 (Board Review 47 and 48).

Findings and Recommendations

Allegation (A) – Abuse of Authority: At § 87(2)(b) on Staten Island, Sergeant Robert Chan questioned § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on December 14, 2018, and provided a follow-up telephone statement on February 4, 2019 (Board Review 51). § 87(2)(b) was interviewed at the CCRB on December 21, 2018 and provided follow up telephone statements on January 28, 2019 and January 29, 2019 (Board Reviews 49 and 50). Detective Commender was interviewed at the CCRB on January 30, 2019. Sergeant Chan was interviewed on February 12, 2019. Lieutenant Fitzpatrick was interviewed on March 19, 2019. Sergeant Gugliucci was interviewed on May 29, 2019.

§ 87(2)(b) testified that on December 5, 2018, at approximately 1:30 p.m. § 87(2)(b) called § 87(2)(b) and stated that he was coming over to § 87(2)(b)'s house, located at § 87(2)(b) on Staten Island. Upon arriving at § 87(2)(b), § 87(2)(b) called § 87(2)(b) and informed him that a number of police officers were outside his house. This was the first § 87(2)(b) became aware that police officers were present.

§ 87(2)(b) exited his house and observed several officers. One of these officers, Sergeant Chan, approached § 87(2)(b) and asked him if he had any identification. § 87(2)(b) responded that his ID was inside. Two to three additional officers joined the conversation, and informed § 87(2)(b) that gunshots had been fired on the street. Sergeant Chan asked § 87(2)(b) for his name, and § 87(2)(b) provided it. § 87(2)(b) then walked down the street towards § 87(2)(b) and they went to a convenience store.

§ 87(2)(g)
When he arrived at § 87(2)(b), he observed a number of officers. Once he exited his vehicle, he observed § 87(2)(b) speaking with three to four officers, but could not hear their conversation. § 87(2)(b) then joined § 87(2)(b) after which § 87(2)(b) testified that they moved § 87(2)(b)'s vehicle around the block.

Sergeant Chan testified that, on December 5, 2018 at approximately 1:24 p.m., he received a radio run for a shots-fired job based upon shot-spotter technology. Sergeant Chan responded to § 87(2)(b) with a number of officers and canvassed for shell casings. Sergeant Chan established a crime scene, and his officers spoke to witnesses and recorded their names. As part of this investigation, Sergeant Chan viewed footage from the Auto-Vault store across the street from § 87(2)(b), which showed someone moving boxes from inside § 87(2)(b) into an SUV parked in the driveway, during which two shots were audible in the footage. The footage ended after these shots. It was not clear in the footage whether the individual moving boxes possessed the firearm. At some point, shell casings were observed in the driveway of § 87(2)(b).

Approximately 20 to 25 minutes after Sergeant Chan arrived on scene, § 87(2)(b) exited § 87(2)(b) by himself. Sergeant Chan could not say whether § 87(2)(b) was the individual visible in the Auto-Vault video, but approached him and asked him if he heard any gun shots,

which § 87(2)(b) denied. Sergeant Chan then asked § 87(2)(b) for his ID. Sergeant Chan explained that § 87(2)(b) had been asked for identification because he exited the house from which the individual in the footage had exited, and from whose driveway shell casings had been located. He also mentioned seeking to determine whether § 87(2)(b) had any outstanding warrants. When it was determined that he did not, he was permitted to leave.

At 23:40 into Sergeant Chan's BWC (Board Review 24), at timestamp 1:52 p.m., sub-clipped in IA #200 (Board Review 61), § 87(2)(b) exits his house. Sergeant Chan asks § 87(2)(b) if he is coming from § 87(2)(b), and § 87(2)(b) responds that he is. He explains that no one else is in the home, and that he has been sleeping. Sergeant Chan informs § 87(2)(b) that gunshots were fired on the block, and takes § 87(2)(b)'s information down from his ID. § 87(2)(b) is allowed to leave, and walks away with § 87(2)(b).

The relevant footage from Auto-Vault's Ring Camera system (Board Review 08), which does not have timestamps, shows a black male exiting § 87(2)(b) with a cardboard box. He walks towards a vehicle in the driveway of § 87(2)(b), opens the door and puts the box in the vehicle. He turns around and picks something up from the yard, at which point two gunshots can be heard. He returns to the vehicle, and the clip ends. Additional Ring camera clips do not capture the vehicle being driven away, or any additional actions taken by this civilian, but by the time the officers arrive on scene, the vehicle is gone.

The radio transmissions pertaining to Event D18120513577 (Board Reviews 64 and 65), summarized in IA #172 (Board Review 63), show that the shots-spotter activation was transmitted over the radio at 1:24 p.m. A number of units responded, and the 911 operator repeatedly confirmed that no 911 calls had been received. Soon after, Sergeant Chan confirmed that ballistics had been found on scene, and requested that the Detective Squad respond. Officers then left the scene to investigate two accidents involving vehicles that were determined to potentially be related to the shots-fired incident.

An officer may approach a citizen and request information when there is an objective credible reason for requesting that information (People v. Debour, 40 N.Y.2d 210 [1976]) (Board Review 52). Without founded suspicion of criminality, an officer is permitted to ask basic, nonthreatening questions that would not lead the person being questioned to believe that they are the subject of an investigation (People v. Holman, 79 N.Y.2d 181 [1992]) (Board Review 53).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation (B)—Abuse of Authority: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick arrested § 87(2)(b)
Allegation (C)—Abuse of Authority: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick arrested § 87(2)(b)
Allegation (D)—Abuse of Authority: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick frisked § 87(2)(b)
Allegation (E)—Abuse of Authority: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick searched § 87(2)(b)
Allegation (F)—Abuse of Authority: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick frisked § 87(2)(b)
Allegation (G)—Abuse of Authority: At § 87(2)(b) on Staten Island, Lieutenant Daniel Fitzpatrick searched § 87(2)(b)

§ 87(2)(b) testified that upon returning to § 87(2)(b) from the convenience store, he was told by officers that detectives wanted to speak with him. After allowing § 87(2)(b) to enter to retrieve a jacket, they did not allow him to reenter the house. § 87(2)(b) and § 87(2)(b) waited outside § 87(2)(b)'s house for approximately 15 minutes before Detective Commander asked § 87(2)(b) whether he had heard the gunshots and a few additional questions. Approximately two to three minutes later, § 87(2)(b) and § 87(2)(b) were handcuffed. § 87(2)(b) asked why they were being arrested, and was told he would find out later. No officer informed § 87(2)(b) that he was arrested, but he assumed that he was because he was being handcuffed. § 87(2)(b) did not recall any officer searching him before or after he was handcuffed, and did not know whether § 87(2)(b) was searched by any officer. The two men were put in separate vehicles and taken from the scene.

§ 87(2)(g)
§ 87(2)(b) recalled § 87(2)(b) entering the house to get a jacket. While he was inside the house, Detective Commander asked him if he had any weapons, and § 87(2)(b) responded that he did not. Detective Commander then grabbed § 87(2)(b)'s arm and pulled him out of the house. Two additional officers grabbed § 87(2)(b) and pulled him out of the house. Both men were handcuffed, after which two officers searched § 87(2)(b)'s pockets. § 87(2)(b) was then placed in a vehicle and brought to the 120th Precinct stationhouse.

Sergeant Chan testified that § 87(2)(b) returned to § 87(2)(b) approximately 15 to 20 minutes after he left. Sergeant Chan did not recall whether § 87(2)(b) was alone when he returned, but stated that § 87(2)(b) arrived on scene at some point before officers entered the home and determined that no one was injured inside (**Allegations H, I, J and K**, discussed below). After the entry was concluded, § 87(2)(b) and § 87(2)(b) were placed in handcuffs at Lieutenant Fitzpatrick's direction. Lieutenant Fitzpatrick, per Sergeant Chan's testimony, determined that § 87(2)(b) and § 87(2)(b) should be brought to the stationhouse to be interviewed. Sergeant Chan did not have any conversation with Lieutenant Fitzpatrick regarding this decision, and did not know if either man was believed to be involved in the shooting.

Having not been present when § 87(2)(b) initially exited the home, Lieutenant Fitzpatrick testified that he was informed by Sergeant Chan that § 87(2)(b) and § 87(2)(b) had left the home and were evasive and uncooperative with officers when they were initially questioned, but

were permitted to leave. Based on this information, Lieutenant Fitzpatrick believed that either § 87(2)(b) or § 87(2)(b) could have been the shooter, and when they returned to the scene, they were directed to remain outside § 87(2)(b), although Lieutenant Fitzpatrick did not recall who directed them to do so. While they were waiting outside, ESU entered § 87(2)(b) (Allegations H, I, J and K, discussed below). At some point after this entry, Lieutenant Fitzpatrick directed that § 87(2)(b) and § 87(2)(b) be taken to the 120th Precinct stationhouse because the Detective Squad was taking too long to arrive on scene. Lieutenant Fitzpatrick testified that neither § 87(2)(b) nor § 87(2)(b) was considered to be under arrest at this point, but they were detained for further investigation because they exited the house outside which shell casings were found and were being evasive. Lieutenant Fitzpatrick did not know whether § 87(2)(b) and § 87(2)(b) were handcuffed to be brought to the stationhouse.

Sergeant Gugliucci testified that he observed § 87(2)(b) and § 87(2)(b) exit § 87(2)(b). He then frisked § 87(2)(b) and § 87(2)(b) and asked § 87(2)(b) for his ID. § 87(2)(b) and § 87(2)(b) were then handcuffed as a safety precaution, a decision which Sergeant Gugliucci took credit for. Sergeant Gugliucci then entered the location with ESU, and § 87(2)(b) and § 87(2)(b) were taken to the stationhouse for further investigation because they fit the description of the person featured in the footage, and were at the location.

Detective Commander testified that § 87(2)(b) and § 87(2)(b) were already handcuffed when he arrived on scene, and that he did not know why they were handcuffed at the time, but that he assumed they were under arrest because they were handcuffed. He never became aware as to why they were handcuffed. Detective Commander did not speak to either § 87(2)(b) or § 87(2)(b) on scene, and first spoke to them at the stationhouse because they had been brought to the stationhouse as arrests.

BWC footage does not capture § 87(2)(b) and § 87(2)(b) returning to the scene or their initial interactions with officers upon doing so. Sergeant Chan's second BWC footage (Board Review 37) shows two plainclothes officers handcuffing § 87(2)(b) and § 87(2)(b) while they stand in front of § 87(2)(b), then frisking and searching each of them. Sergeant Chan explains to an officer in a suit who arrives on scene that § 87(2)(b) and § 87(2)(b) are "both in cuffs, so they're going to be under for now, but I don't know what [the] Lieutenant exactly found over there," referring to the investigation of a possibly related vehicle taking place simultaneously.

The 120th Precinct Command Log (Board Review 67) for December 5, 2018, contains an entry for the arrest of § 87(2)(b) which lists his charge as "shot-spotter." There is another entry on the same page which is blacked out, but could be for § 87(2)(b). Further, a search of BADS reveals sealed arrest reports for § 87(2)(b) and § 87(2)(b) prepared on December 5, 2018.

In Dunaway v. New York, 442 U.S. 200 (1979) (Board Review 54), the court ruled that, "detention for custodial interrogation--regardless of its label--intrudes so severely on interests protected by the Fourth Amendment as to necessarily trigger the traditional safeguards against illegal arrest," namely the requirement of probable cause. The circumstances which made the custodial detention in Dunaway indistinguishable from a traditional arrest were that the detained

person was taken from a home and placed into a police car, transported to the police station and placed in an interrogation room without being informed that he was free to go.

§ 87(2)(g)

Lieutenant Fitzpatrick was clear in his testimony that he did not consider § 87(2)(b) or § 87(2)(b) to be under arrest at the time that he directed officers to bring them to the stationhouse, and that they were brought to the stationhouse for further investigation because the Detective Squad was taking too long to arrive at the incident location.

§ 87(2)(g)

Patrol Guide Procedure 208-03 (Board Review 66) dictates that, once a person has been handcuffed, an officer should immediately conduct a frisk and field search before bringing them to a police facility.

§ 87(2)(g)

Allegation (H)—Abuse of Authority: Sergeant Robert Chan entered § 87(2)(b) on Staten Island.

Allegation (I)—Abuse of Authority: Sergeant Thomas Gugliucci entered § 87(2)(b) on Staten Island.

Allegation (J)—Abuse of Authority: Sergeant Robert Chan searched § 87(2)(b) on Staten Island.

Allegation (K)—Abuse of Authority: Sergeant Thomas Gugliucci searched § 87(2)(b) on Staten Island.

§ 87(2)(g)

§ 87(2)(b) stated that he first observed officers enter his home after § 87(2)(b) had been driven from the scene, while § 87(2)(b) was handcuffed in a police vehicle. From inside the vehicle § 87(2)(b) observed at least four plainclothes and uniformed officers enter his house, and remain inside for approximately three to four minutes. He could not see what occurred inside the house. No officer asked § 87(2)(b) if they could enter his house.

§ 87(2)(b) testified that officers put their hands in the house when they pulled him and § 87(2)(b) out of the house, but he did not testify to seeing any additional entry of the house. He did state during his CCRB interview that § 87(2)(b) later informed him that he had seen an officer lean backwards into the house after the two men were handcuffed.

BWC footage does not capture the entry or the events directly leading up to it.

Sergeant Chan testified that he called ESU to the scene upon his arrival in order to assist with the canvas for shell casings. ESU arrived simultaneously with § 87(2)(b)'s return to the scene after his initial questioning. It was determined that ESU was to enter the building, and while Sergeant Chan did not recall who made the decision to enter the home, he stated that it was a supervisor, and he, Sergeant Gugliucci and Lieutenant Fitzpatrick were the only supervisors on scene at the time. Sergeant Chan stated that he did not recall whether § 87(2)(b) was asked for consent before the entry was made, but that a search warrant was not obtained because the officers were worried someone could be hurt inside the location.

Sergeant Chan entered the home with ESU officers, and remained in the foyer while ESU proceeded upstairs. The officers remained in the house for approximately five minutes, and determined that no one was inside.

Lieutenant Fitzpatrick also testified that the ESU entry occurred sometime after § 87(2)(b) and § 87(2)(b) returned to the scene, but before they were handcuffed. He did not know who requested ESU, but recalled that they entered to search for additional ballistics, victims or perpetrators. Lieutenant Fitzpatrick did not know who directed the ESU officers to enter, but believed it may have been Sergeant Chan's decision. Lieutenant Fitzpatrick clarified that the officers had no information to suggest that someone was injured inside the location, but that they did not know for certain that someone was not. Lieutenant Fitzpatrick did not know why a search warrant was not obtained, but stated that either § 87(2)(b) or § 87(2)(b) may have given consent to enter and search. He did not hear either man object to the entry.

Sergeant Gugliucci's testimony regarding the entry was § 87(2)(g) that he recalled that the entry occurred after § 87(2)(b) and § 87(2)(b) were handcuffed. Sergeant Gugliucci did not call ESU, and did not know who did. He initially stated that he believed ESU needed to be called to determine that no one had been shot inside, because shots had been fired and the bullet could have gone anywhere, and later added that he believed the male depicted in the Ring camera video had entered the location after firing the gun. He did not know

if § 87(2)(b) or § 87(2)(b) provided consent to enter, but entered with the ESU officers when they arrived.

Detective Commander testified that when he arrived on scene, at which point § 87(2)(b) and § 87(2)(b) were already handcuffed, he observed officers enter § 87(2)(b) to ensure that that there was no person who had been shot inside. Detective Commander did not enter the home, and did not know whether consent was given to enter the home.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

The courts have ruled that an officer may not make a warrantless and nonconsensual entry into a residence unless there are exigent circumstances (People v. McBride, 14 N.Y.3d 440 [2010]) (Board Review 55), officers are in “hot pursuit” of a fleeing suspect (People v. Skinner, 284 A.D.2d 906 [2001]) (Board Review 56) or there is an emergency (People v. Scott, 133 A.D. 3d 794 [2015]) (Board Review 57).

In McBride, the court analyzed six factors in order to determine whether exigent circumstances existed: “(1) the gravity or violent nature of the offences with which the suspect is to be charged; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause...to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the suspect will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry” (McBride). In regard to the “hot pursuit” exception, the courts have held that an officer must have probable cause to arrest an individual while he or she is outside the private location to be entered (Skinner).

Meanwhile, the courts have established two prongs which determine whether an entry is justified under the emergency exception of the warrant requirement: firstly, that the entering officer must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property and secondly, that the officer has something approximating probable cause to associate an emergency with the location being entered (Scott).

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation (L)—Abuse of Authority: At the 120th Precinct stationhouse, Detective Matthew Commender threatened to arrest § 87(2)(b)

Allegation (M)—Abuse of Authority: At the 120th Precinct stationhouse, Detective Matthew Commender searched § 87(2)(b)'s recording device.

Allegation (N)—Abuse of Authority: At the 120th Precinct stationhouse, Detective Matthew Commender searched § 87(2)(b)'s recording device.

§ 87(2)(b) testified that he was brought to the 120th Precinct stationhouse, his cell phone was taken from him, and he was placed in a room with Detective Commender. Detective Commender asked § 87(2)(b) a number of questions about the shooting and § 87(2)(b) maintained that he had not been involved. At some point, Detective Commender pulled § 87(2)(b)'s iPhone 8+ from his (Detective Commender's) pocket and pointed to § 87(2)(b)'s text notifications on the home screen and asked § 87(2)(b) to open his phone. Detective Commender asked § 87(2)(b) who "§ 87(2)(b)" was, because a person listed in § 87(2)(b)'s phone as "§ 87(2)(b)" had texted him (§ 87(2)(b) is § 87(2)(b) stepfather). Detective Commender asked § 87(2)(b) to unlock his phone and said, "You won't go home tonight if you don't unlock your phone." § 87(2)(b) did not object and unlocked his phone with his Face ID. He and Detective Commender viewed the most recently sent message from § 87(2)(b) and no other messages.

§ 87(2)(b) testified that he was brought to the 120th Precinct stationhouse, where he was informed that he was not under arrest. At the stationhouse his phone was taken from him and placed in a plastic bag, and he was sent to an interview room with Detective Commender, and no one else. § 87(2)(b) explained the events of his day to Detective Commender, and Detective Commender went to get § 87(2)(b)'s phone. He put it in front of § 87(2)(b) and asked § 87(2)(b) for his password. § 87(2)(b) provided his password, and Detective

Commander went through § 87(2)(b)'s call log and text messages in front of him. § 87(2)(b) did not make any verbal objection to Detective Commander doing so.

Detective Commander § 87(2)(g) stated that he returned to the stationhouse, and conducted debriefings of § 87(2)(b) and § 87(2)(b) because they were brought in as arrests. Detective Commander believed that § 87(2)(b) and § 87(2)(b) would have been frisked for weapons and sent through the arrest processing area, while their property was kept with the arresting officer, because this is the policy for individuals brought to the stationhouse for a debriefing.

He first spoke with § 87(2)(b) and asked him for a timeline of his day. § 87(2)(b) stated that § 87(2)(b) had sent him a text message to inform him that he was coming over earlier that day, and Detective Commander responded, "Well, can you show me that text message on your phone?" and § 87(2)(b) responded that he would show Detective Commander his phone. Detective Commander left the room to retrieve § 87(2)(b)'s phone. He handed § 87(2)(b) the phone, said, "Unlock your phone," and § 87(2)(b) did so. Detective Commander did not threaten § 87(2)(b) that he would not go home if he did not unlock his phone. A search warrant was not obtained because § 87(2)(b) unlocked his phone and showed Detective Commander of his own accord and did not object to doing so.

After viewing the text message from § 87(2)(b) on § 87(2)(b)'s phone, Detective Commander proceeded to interview § 87(2)(b). He had obtained § 87(2)(b)'s pedigree information and had begun discussing the events of the day when he was informed by another officer that a perpetrator, § 87(2)(b) had been apprehended. Detective Commander was never in possession of § 87(2)(b)'s cell phone, did not direct him to show his text or call log and did not ask § 87(2)(b) for his phone password. Detective Commander had no further interaction with § 87(2)(b) or § 87(2)(b).

Neither Sergeant Gugliucci nor Lieutenant Fitzpatrick had any further interaction with § 87(2)(b) or § 87(2)(b) once they left the scene. Sergeant Chan observed them leaving the stationhouse, but was not present for either of the debriefings.

In People v. Gonzalez, 39 N.Y.2d 122 (1976) (Board Review 59), the court established a number of factors to consider in determining "whether consent has been voluntarily given or is only a yielding overbearing official pressure." Relevant factors include whether the consenter is in custody or under arrest, whether the consenter is handcuffed, and whether the consenter has been informed of his right to refuse consent. Specific attention is paid by the court to the issue of whether the consenter is in custody, clarifying that while custody or arrest alone does not preclude the ability to consent, "Custody... engender[s] an atmosphere of authority ordinarily contradictory of a capacity to exercise a free and unconstrained will."

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which either § 87(2)(b) or § 87(2)(b) has been a party (Board Review 01 and 02).
- Sergeant Chan has been a member-of-service for 12 years and this is the first CCRB complaint to which he has been subject.
- Detective Commender has been a member-of-service for 12 years and has been a subject in two additional CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Lieutenant Fitzpatrick has been a member-of-service for 12 years and this is the first CCRB complaint to which he has been a subject.
- Sergeant Gugliucci has been a member-of-service for 13 years and has been a subject in five additional CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) and § 87(2)(b) declined to mediate this complaint.
- As of September 23, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 58).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]
[redacted]
- [redacted]
[redacted]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date